

**SUBSTITUTE FOR
HOUSE BILL NO. 4204**

A bill to amend 2000 PA 92, entitled
"Food law,"
by amending section 6101 (MCL 289.6101), as amended by 2012 PA 178.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 6101. (1) Chapters 1 through 8 of the food code are
2 incorporated by reference except as amended and modified as
3 follows:

4 (a) Where provisions of this act and rules specify different
5 requirements.

6 (b) Section 3-401.14 is modified to read as follows:

7 "3-401.14 Non-Continuous Cooking of Raw Animal Foods.

8 Raw animal foods that are cooked using a non-continuous
9 cooking process shall be:



(A) Subject to an initial heating process that is no longer than 60 minutes in duration;^P

(B) Immediately after initial heating, cooled according to the time and temperature parameters specified for cooked potentially hazardous food (time/temperature control for safety food) under paragraph 3-501.14 (A) ;^P

(C) After cooling, held frozen or cold, as specified for potentially hazardous food (time/temperature control for safety food) under paragraph 3-501.16 (A) (2) ;^P

(D) ~~Prior to~~ **Before** sale or service, cooked using a process that heats all parts of the food to a time/temperature specified in paragraph 3-401.11 (A) ;^P

(E) Cooled according to the time and temperature parameters specified for cooked potentially hazardous food (time/temperature control for safety food) under paragraph 3-501.14 (A) if not either hot held as specified under paragraph 3-501.16 (A), served immediately, or held using time as a public health control as specified under section 3-501.19 after complete cooking;^P and

(F) Stored as follows:

(1) After initial heating but ~~prior to~~ **before** cooking as specified under paragraph (D) of this section, separate from ready-to-eat foods as specified under paragraph 3-302.11;^{Pf} and

(2) After initial heating, but ~~prior to~~ **before** complete cooking, marked or otherwise identified as foods that must be cooked as specified under paragraph (D) of this section ~~prior to~~ **before** being offered for sale or service.^{Pf} The food may be identified in any effective manner provided that the marking system is disclosed to the regulatory authority upon request."

(c) Section 2-103.11 (L) is modified to read as follows:



1 "Employees are properly trained in food safety as it relates
2 to their assigned duties;^{Pf} and".

3 (d) Section 6-501.115(B) is modified by the addition of
4 subparagraph (6) that reads as follows:

5 "(6) A dog that is controlled by a customer in a qualified
6 premises if all of the following apply:

7 (a) The qualified premises sells and serves only drinks.

8 (b) A health or safety hazard will not result from the
9 presence or activities of the dog.

10 (c) All of the following requirements are met:

11 (i) The qualified premises is maintained free of visible dog
12 hair, dog dander, and other dog-related waste and debris. The
13 qualified premises is cleaned and disinfected appropriately as
14 needed.

15 (ii) Surfaces contaminated by the waste created from a dog's
16 bodily functions are immediately cleaned and disinfected.

17 (iii) Equipment used to clean and that comes in contact with
18 waste from a dog's bodily functions is stored separate from all
19 other cleaning equipment and is not used for other cleaning
20 purposes.

21 (iv) All dog waste is disposed of at least daily outside of the
22 qualified premises in a covered waste receptacle.

23 (v) An employee who touches the dog or cleans waste from the
24 dog's bodily functions does not serve drinks or handle tableware
25 until the employee has washed the employee's hands.

26 (vi) The dog is not allowed on a seat, chair, or customer's
27 lap, or allowed to contact a tabletop, countertop, or similar
28 surface in the qualified premises.

29 (vii) The dog is not allowed to contact reusable tableware



1 unless the tableware is dedicated for use by dogs and readily
2 distinguishable as such or is provided by the customer handling the
3 dog.

4 (viii) The dog is not allowed in an area where drinks are
5 prepared.

6 (ix) The dog is not unattended.

7 (x) The customer is 18 years of age or older.

8 (xi) The customer keeps the dog on a leash.

9 (d) The qualified premises may do any of the following:

10 (i) Determine the location and the amount of space designated
11 for a customer accompanied by a dog.

12 (ii) Establish a limit on the size and type of dog and any
13 other limitation relating to a customer's dog.

14 (iii) Deny entry or eject from the qualified premises a customer
15 and the customer's dog.".

16 (2) The director, by rule, may adopt any changes or updates to
17 the food code.

18 (3) The annexes of the food code are ~~considered~~ persuasive
19 authority for interpretation of the food code.

20 Enacting section 1. This amendatory act does not take effect
21 unless House Bill No. 4205 (request no. H00704'25) of the 103rd
22 Legislature is enacted into law.